Kaleidoscope Developers Pvt. Ltd.

Date:- 25/06/2025

To,

The Maharashtra Real Estate Regulatory Authority,

6th & 7th Floor, Housefin Bhavan,

Plot No. C - 21, E - Block, Bandra Kurla Complex,

Bandra (E), Mumbai 400051

Subject – Deviation Report with respect to a model copy of the agreement of the "Kaleidoscope R5 Misty greens Phase 3B"

Dear Sir/Ma'am,

I, **Pushkar Apte** Director & authorised signatory of **KALEIDOSCOPE DEVELOPERS PRIVATE LIMITED** hereby state declare that we have modified and adopted the format of Agreement for Sale submitted at the time of registration of the project "**Kaleidoscope R5 Misty greens Phase 3B**" to MahaRERA, however, we have incorporated the clauses therein in accordance with the statute and provision of Real Estate (Regulation and Development) Act 2016.

We would like to further state and declare that the following clauses and schedule have certain deviation from the model format of Agreement for Sale and the same are highlighted in draft of Agreement for Sale (attached herewith) uploaded on the portal

Clause No.	Clause of the Agreement
1	1.1. The Township Land : Shall mean and include all those pieces of lands totally admeasuring 47 Hectares70.39 ares i.e. 477039.00 Sq. Mtrs., Mtrs.,situated at Bungalow plot Bhugaon, Taluka Mulshi, District Pune, within the registration Sub-District Taluka Mulshi, District Pune and within the limits of Gram Panchayat Bhugaon, Panchayat Samitee, Taluka Mulshi, Zilla Parishad Pune owned by the Owner/Promoter and various persons for which a layout dated 20/11/2018, for all those pieces of lands were sanctioned and issued by the Pune Metropolitan regional Development Authority (PMRDA), Pune, vide letter no. BMU/Mauje Bhugaon/S. Nos.125/5, 126/2 and others/Pr. Kr.1835/17-18 to the Owner/Promoter for the development of the said Kaleidoscope Township which lands are described and mentioned in the preamble herein above; and 1.2. Additional Township lands: - means and includes all those pieces and parcels of lands that may be acquired and included in the said Township Land.

	1.3. The Kaleidoscope Township Land': shall means and includes all that township land and additional township lands together with called as the Kaleidoscope Township Land. 1.4. Township Global FSI Shall mean the right to claim, utilize and consume entire Floor Area Ratio/Floor Space Index (FAR/FSI), including all such buildable potential such as additional FSI, Premium FSI, TDR as may be defined, available, granted and permitted on global basis under the rules and regulations framed or which may be framed from time to time by the Government of Maharashtra relating to the said Kaleidoscope Township Land (herein after referred as "Township Global FSI"), which is excluding the total FSI of ---------- sq. mtrs belonging to the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project. 1.5. Rights of the Owner/Promoter: shall means and includes all the primary and/or ancillary and/or supplementary and/or residuary rights, title, interest, claims, statutory and/or contractual of the Owner /Promoter in and over and/or in respect of and/or relating to the said Township Land. 1.6. Township Project (TP): Shall mean and include the Kaleidoscope Township sanctioned on the township land and as may be sanctioned on the additional township land under regulations for Development of Special Townships under Sub-Section (4) of the Maharashtra Regional and Town Planning Act, 1966 (said Act) or sanctioned as per the modified / revised Regulations of 2019 for Development of Integrated Township other subsequent amendments thereunder and/or such other statutes and rules in respect of Townships. 1.7. The "Kaleidoscope R5 -Misty Greens - phase 3": means and includes, the total proposed development of Sector R5 Misty Greens - phase 3 including sub-phases: 3(A), 3(B), and 3C currently admeasuring to a total area of 66956.09 sq.mtrs, consisting of residential Sector/Plots as per the sanctioned layout plan 3A,3B &3C including garden, Open space, utility & internal road) carved out of the land.This land subject to change as per modified PLU from time to time. 1.8. The "Kaleidoscope R5 -Misty Greens - phase 3-B": means and includes, the Owner/Promoter has propose development of Sector/Plots bearing distinct numbers and types consisting of residential Sector/Plots as per the sanctioned layout plan on the Sector No. Kaleidoscope R5 -Misty Greens - phase 3 B admeasuring 11116.08 Sq. Mtrs., carved out of the land bearing Survey nos. 146/1, 146/3, 146/5, 146/6, 148, 149/1, 149/2, 151/1, 151/2, 152/1, 152/2, 154/1, 154/2, 154/4, 154/6, 154/7, 154/8, 154/10 & 154/11 which is included in the said Layout and the Plots of the said Sector No. R5 - Misty Greens - phase 3 B to be known as "Kaleidoscope R5 -Misty Greens - phase 3-B" PROJECT' or the Said Project. 1.9. "Kaleidoscope R5 - Misty Greens - Phase 3" – ENTIRE PROJECT LAND: The Entire project land comprises 66,956.09 square meters within Sector No. R-5, Phase 3, which is further divided into three sub-phases: 3(A), 3(B), and 3(C). This land has been carved out of the present sanctioned layout and includes residential sectors/plots as per the approved layout plans for 3A and 3B, with Phase 3C proposed for future development, subject to applicable approvals.The project also includes designated gardens, open spaces, utility spaces, and internal roads. The land is more specifically described in Schedule-II and shall be collectively referred to in subsequent sections as "Kaleidoscope R5 - Misty Greens - Phase 3 – Entire Project Land" or "Said Entire Project Land." This land subject to change as per modified PLU from time to time. 1.9. "Kaleidoscope R5 -Misty Greens - phase 3 B"- PROJECT LAND: All those pieces of plot of land in Sector R-5 PHASE 3B admeasuring 11116.08 Sq. Mtrs., carved out of land bearing Survey nos. 146/1 & others, included in the said Layout to be used for the residential purpose as per the sanctioned layout plans. The said Sector R-5 Misty Greens

	- phase 3B land is more particularly described in the Schedule-III written hereunder and hereinafter referred to as "Kaleidoscope R5 -Misty Greens - phase 3-B" PROJECT LAND' or 'said PROJECT LAND'. 1.10. The 'Unit': means a structure of residential or commercial premises consisting of flats, bungalows, shops, offices, utility/dry balcony spaces, adjacent/formed terraces, parking/garage areas, guest rooms etc. constructed in any project on the said Kaleidoscope Township Land. 1.11. The said Plot: means and includes the residential Plot as per the sanction layout Plan out of the said Project land, which is agreed to be purchased by the Purchaser under this agreement. 1.12. Township Maintenance Agency'('TMA'): the Owner/Promoter or the Owner/Promoter shall be entitled to delegate or assign the said maintenance work of Overall Township Amenities or parts thereof to any other person/s on such terms and for such consideration as the Owner/Promoter at its discretion may think proper, said Owner/Promoter and such other person/s for the maintenance work of Overall Township Amenities to be provided by the Owner/Promoter to the TP or parts thereof on such terms. 1.13. Overall Township Amenities:- Amenities as indicatively enlisted in Annexure 'E-1', (said Township Amenities) and Common utilities of the said Township required under the Development Rules of TP such as township roads, drainage, sewage treatment plant, solid waste management, storm water system, as indicatively enlisted in Annexure 'E-2', (said Township Utilities),herein the said Township Amenities and the said Township utilities shall collectively be referred to as said 'OVERALL TOWNSHIP AMENITIES'. 1.14. Township Maintenance Charges (TMC)': means and includes contribution collected from all entities in the TP towards the maintenance of the said Overall Township Amenities by the Owner/ Promoter or the TMA. 1.15. Optional Facilities: - Means Paid Amenities /Facilities as indicatively enlisted in ANNEXURE 'D', hereinafter referred to as the said 'OPTIONAL FACILITIES'. They shall be owned and managed by the Owner/Promoter. The Owner/ Promoter shall be entitled to sell, convey, transfer and give it to operate of the Paid Amenities for consideration or otherwise, to any other person, company or a Society corporate. Hereinafter such other person, company or a Society corporate called as said 'Owner-Operator'. 1.16. Project amenities:- Amenities as indicatively enlisted in Annexure 'F', (said Project/ Sector Amenities R-5 Misty Greens - phase 3A, 3B & 3C) Project utilities of the said project required under the Development Rules of TP such as sewage treatment plant, sub-station/L T room, solid waste management, storm water system, as indicatively enlisted in Annexure 'F', 1.17. Sector Amenities for Misty Greens R5- Phase 3 A-B-C:- For the Project Kaleidoscope R5 Misty Greens - Phase 3 (A-B-C Together) as indicatively enlisted in ANNEXURE 'F', (said Sector Amenities for Misty Greens R5- Phase 3) herein the said Sector Amenities and the said Sector Amenities for Kaleidoscope R5-Misty Greens phase 3 A,B & C shall be referred to as said 'PROJECT/ SECTOR AMENITIES For the projects Kaleidoscope R5-Misty Greens phase 3 A,B & C, 1.18. Common Amenities:- For the Project Kaleidoscope Misty Greens - Phase 1, 2 & 3 (OR Misty Greens R5 A-B-C Together) as indicatively enlisted in ANNEXURE 'F-1 (said Common Amenities) herein the said Common project Amenities and the said Common Project Amenities for Kaleidoscope R4 -Misty Greens, Kaleidoscope R3-Misty Greens& Kaleidoscope R5-Misty Greensshall be referred to as said 'COMMON AMENITIES For the projects Kaleidoscope R4-Misty Greens & Kaleidoscope R3-Misty Greens- phase II'& Kaleidoscope R5-Misty Greens.

	1.19. 'Kaleidoscope R5 -Misty Greens - phase 3-B' Project Maintenance Charges:- will comprises of share of said Project maintenance charges for maintaining utilities and facilities in "Kaleidoscope R5 -Misty Greens - phase 3-B" to be contributed by members of various units in said Project.
2	2.1. The Owner/Promoter shall develop the residential plots project on the said '"Kaleidoscope R5 -Misty Greens - phase 3-B" Project Land (in Sector R-5) after getting the required layout (PLU) and F.S.I. sanctioned. The Purchaser / Allottee have expressly given no objection and permission to the Promoter / Owner to sanction a balance FSI if any for the said Sector R-5-phsae 3B Project land. The Owner / Promoter is not required to take any separate No Objection Certificate from Purchaser / Allottee for further sanction of balance FSI and transition to the Integrated Township Policy 2019. 2.2. The Purchaser/Allottee hereby agrees to Purchase from Owner/Promoter and the Owner/Promoter agrees to sell, transfer and otherwise convey in the manner hereinafter mentioned, the said Plot bearing No. _____, having area admeasuring _____ Sq. Mtrs., in the "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and which is more particularly described in the SCHEDULE-IV written hereunder, and delineated in Red color in the Layout Plan as ANNEXURE 'C' annexed herewith, unto and in favour of the Purchaser, subject to the fulfillment of the terms and conditions specified herein and the Purchaser agrees to acquire and purchase the same from the Owner/Promoter, for and at a price consideration of Rs. _____/- (Rupees _____only), including proportionate price of the common areas and facilities, hereinafter referred to as the said 'AGREEMENT VALUE', and other contributions to be paid by the Purchaser to the Owner/Promoter, as hereinafter mentioned. Provided that the aforesaid Agreement value consist of Rs. _____/- (Rupees _____only) towards the land /Plot and Rs. _____/- (Rupees _____only) towards the development charges of the land/plot. The purchaser agrees that Owner/Promoter shall also be recovering GST as may be applicable on service charge as offered. 2.3. The Purchaser/Allottee/s agrees and understands that timely payment towards purchase of the said Plot as per payment plan/schedule hereto is the essence of the Agreement. The Purchaser/Allottee has paid on or before execution of this agreement a sum of Rs. _____/- as advance payment or application fee, and the Purchaser/Allottee has agreed to pay to the Owner/Promoter the balance of sale consideration in the manner hereinafter appearing as ANNEXURE 'K' annexed herewith. 2.4. The above Agreement Value includes Taxes (consisting of tax paid or payable by the Owner/Promoter by way of Value Added Tax, Service Tax, GST and Cess or any other similar taxes which may be levied, in connection with the construction of and carrying out the Project payable by the Owner/Promoter) up to the date of handing over the possession of the said Plot and the above consideration is escalation-free, save and except escalations/increases, due to increase on account of development charges payable to the competent authority and/or any other increase in charges which may be levied or imposed by the competent authority Local Bodies/Government from time to time. The Owner/Promoter undertakes and agrees that while raising a demand on the Purchaser/s/Allottee/s for increase in development charges, cost, or levies imposed by the competent authorities etc., the Owner/Promoter shall enclose the said notification/ order/rule/regulation published/ issued in that behalf to that effect along with the demand letter being issued to the Purchaser/s/Allottee/s, which shall only be applicable on subsequent payments.
3.3 & 3.4	3.3. In case if any bank charges are debited to the account of the Owner/Promoter, the net amount shall be deemed as payments by the Purchaser.

	3.4. The time for payment of the installments of the said Agreement Value as provided in ANNEXURE -K' shall be the ESSENCE OF CONTRACT.
3.9	3.9. The Owner/Promoter herein on due date or on reaching aforesaid milestone/stage shall intimate the amount payable as stated above in writing or by email to the Purchaser/Allottee/s and the Allottee shall make payment of such due amount to the Owner/Promoter within seven days from date of receiving such intimation. The Purchaser/Allottee herein specifically agrees that he/she/they shall pay the aforesaid amount along with the service tax, VAT, GST and any such other Taxes without any delay along with each installment.
4.1 to 4.7	4.1. SCHEDULE FOR POSSESSION OF THE SECTOR AMENITIES:-The Owner/Promoter herein is developing the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project which consists of Plots having project amenities as enlisted hereinafter the construction / development of the said project amenities for the Project "Kaleidoscope R5 -Misty Greens - phase 3-B" will be completed in due course only after completion of development of entire project. The Owner/Promoter assures to hand over possession of the said "Kaleidoscope R5 -Misty Greens - phase 3-A+B+C" Sector/ Project amenities enlisted in Annexure "F" on or before 31st January 2030. The Purchaser/Allottee/s herein agree and convey that he/she/they shall not be entitled to refuse to take the possession of the said Plot on the ground of non-completion of aforesaid Project amenities. 4.2. The Purchaser/Allottee/s agrees not to raise any objection and agrees to make payment of all instalments as per the work progress even if the Owner/Promoter completes the said Plot substantially earlier than the aforesaid possession handover date 4.3. PROCEDURE FOR TAKING POSSESSION:- The Owner/Promoter, upon completion of layout development shall offer in writing to the Purchaser/Allottee/s intimating that, the said Plot is ready for construction and occupation. The Purchaser/Allottee/s herein shall inspect the said Plot in all respects to confirm that the same is in accordance with the terms and conditions of this Agreement, complete the payment of total consideration and dues and taxes thereon to the Owner/Promoter as per terms and conditions of this Agreement and take the possession of the said Plot within 15 days' from the date of written intimation issued by the Owner/Promoter to the Purchaser/Allottee herein. The Owner/Promoter agrees and undertakes to indemnify the Purchaser/Allottee/s in case of failure of fulfillment of any of the provisions, formalities, documentation on part of the Owner/Promoter. The Purchaser/Allottee/s agrees to pay the maintenance charges as determined by the Owner/Promoter/Body of the Plot Purchaser/Allottee/s/ Association of Allottees, as the case may be. 4.4. It shall be expressly agreed that wherever it is the responsibility of the Purchaser/Allottee to apply and get necessary services the same shall not be undertaken by the Owner/ Promoter and the Purchaser/Allottee shall be solely responsible for the same. 4.5. Upon receiving a written intimation from the Owner/Promoter as stated hereinabove, the Purchaser/Allottee/s shall take possession of the Plot from the Owner/ Promoter by executing necessary indemnities, undertakings, possession letter/agreement and such other documentation as prescribed in this Agreement, and the Owner/Promoter shall give possession of the Plot to the Purchaser/Allottee/s. In case the Purchaser/Allottee/s fails or commits delay in taking possession of said Plot within the time provided hereinabove, such Purchaser/Allottee/s shall be liable for payment of common maintenance charges as applicable, revenue/N.A. tax, electricity

	charges and any other expenses and outgoings in respect of the said Plot and the Owner/Promoter shall not be liable for the maintenance of the said Plot. 4.6. After handing over physical possession of the said Plot to the Purchaser/Allottee/s, it shall be the responsibility of the Owner/Promoter to handover the necessary documents and plans, including common areas, to the association of the Purchaser/Allottee/s or the competent authority, as the case may be, as per the local laws. 4.7. That the Purchaser/Allottee/s has/have given his/her/their specific confirmation therein that the responsibility of title of the said Project Land be on the Owner/Promoter up and until the conveyance of the said the said Project Land / the said Plots.
5.1.1 to 5.1.3	5.1.1 The Owner/Promoter hereby clarifies that the approved lay out is an interim layout and The Owner/Promoter reserves the right and proposes to further amend change or revise such layout from time to time so as to utilize/ consume in the part Kaleidoscope R5 -Misty Greens - phase 3A, 3B, 3C out of the said Sector R5 and in accordance with the plans as may ultimately be approved and/or amended and sanctioned by the PMRDA and or other bodies and or concerned authorities but without altering the location, area and project amenities of the said project. 5.1.2 The Owner/Promoter shall form a Co-operative Housing Society classified as a "Co-operative Housing Society"(Required few changes) on the "Kaleidoscope R5 - Misty Greens - Phase 3(B) " project land. Additionally, the Owner/Promoter shall also form a Co-operative Housing Society on the "Kaleidoscope R5 - Misty Greens - Phase 3(A & C)" project land. Society members have the choice to amalgamate into one society. If the society members are not willing to amalgamate all three societies into one, then the Owner/Promoter will form an apex body or federation of these societies. 5.1.3 Considering the Owner/Promoter herein is carrying on the construction/ development on the said Kaleidoscope Township Project land in phases as aforesaid and further to have the maintenance of the said project and Overall Township Amenities, Project amenities, common amenities and facilities enlisted in Annexure E-1, E-2, F and F-1, respectively more conveniently, there will be one or more entities/Co-operative societies and/or Apex Body/Federation and/or limited company or as such may be formed under prevailing local laws as may be applicable to the said Kaleidoscope Township Project, as may deem fit by the Owner/Promoter.
5.1.4 (part) and 5.1.5	The Owner/Promoter shall have liberty to put name board of Owner/ Promoter in vicinity/on the said Project/Township and shall also have liberty to decide any other name for the said Society/Project. The Purchaser or other Plot holders in the said Society or its successors are not entitled to change the aforesaid names and remove or alter name board of the Owner/ Promoter in any circumstances. The Purchaser undertakes to become member of said Society and shall extend full co-operation to Owner/ Promoter in formation of said society by signing various applications, paper and documents or otherwise sign and return to the Owner/Promoter within seven days of the same being forwarded by the Owner/Promoter to the Purchaser/Allottee, so as to enable the Owner/Promoter to register the common organization of Purchaser/Allottee. No objection shall be taken by the Purchaser/Allottee if any; changes or modifications are made in the draft bye-laws, or the Memorandum and/or Articles of Association, as may be required by the Registrar of Co-operative Societies or the Registrar of Companies, as the case may be, or any other Competent Authority. This condition is essential condition of this Agreement. 5.1.5 In all respect after completion of "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and further to have maintenance Overall Township Amenities, common amenities and facilities enlisted in Annexure E-1, E-2 and F, F-1, respectively and Open

	spaces, Internal roads and otherwise in said “Kaleidoscope R5 -Misty Greens - phase 3” Project more conveniently, there will be one Apex Body/Federation/ Limited company or as such may be formed by Owner / Promoter as may be applicable to said Kaleidoscope Township.
6.2 to 6.9	6.2 In the "Kaleidoscope R5 - Misty Greens - Phase 3," there are three sub-phases: 3(A), 3(B), and 3(C). The Owner/Promoter will form separate societies for each of these sub-phases. The members of these societies have the option to amalgamate into a single society through a resolution. If society members choose not to amalgamate into one society, then after the completion of the last sub-phase, 3(C), the Owner/Promoter will establish an apex body or federation. The Owner/Promoter will be responsible for conveying the entire project land to this apex body or federation. 6.3 The above said deed of conveyance to be executed unto and in favour of the said Society/ apex body or federation. shall incorporate wherever relevant and necessary, the terms and conditions of this Agreement, terms and conditions imposed by the Government while granting various sanctions and permissions; and policies, bye-laws, rules and regulations of the TP, framed by the said TMA. The Owner/Promoter shall be responsible to prepare the draft of the Deed of Conveyance. The Owner/Promoter shall be liable and responsible to convey only the concerned part of the said “Kaleidoscope R5 -Misty Greens - phase 3-B” Project land to the said Society, in which the said Plot herein agreed to be purchased by the Purchaser is situated. The ownership of the “Kaleidoscope R5 -Misty Greens - phase 3-B” project land, common amenities, and open spaces shall retained by Owner/Promoter until it is conveyed to the said Apex body or Federation, as recorded herein above. It is further clarified that the Overall Township Amenities including common/ internal roads, artery roads, green spaces, public utility spaces, and remaining open spaces etc. shall not be transferred to the said society or as case may be, but shall be retained and manage and maintain by the Owner/Promoter. The said Owner/Promoter shall be entitled to own, retain, manage and maintain the Overall Township amenities and shall be entitled to convey, transfer Overall Township amenities, including internal road to any urban local body as may be formed in future for purpose of maintenance of this township by government. 6.4 The Purchaser or the said Society shall not have any right, title or interest of any kind on the property to be conveyed to the other entities in the Kaleidoscope Township Land/ TP. 6.5 The purchaser confirms that he/she/they has/have read and accepted certain specific bye laws which are in conformity with the objective of township and which would be incorporated as additional bye laws and same shall be read with model bye laws provided under societies Act of proposed society. By this agreement to indenture the Purchaser has given his/her/their No Objection and clearance to Owner/Promoter to change or modify draft bye laws of the said Society as may be required by Owner/Promoter or concerned authority from time to time. The Purchaser either individually or otherwise howsoever shall not be entitled to raise any objection/s of whatsoever nature in this behalf. The Purchaser shall observe all the rules and regulations of bye laws of the said Society, including the amendments made there to from time to time. 6.6 All the expenses relating to the conveyance in favour of the said Society or Apex Society/Federation such as stamp duty, registration fees, legal fees and other incidentals, if any, other than stamp duty and registration charges paid for these present, shall be borne and paid by all the Purchasers in proportion to the sharing areas of their respective Plots. 6.7 The Owner/Promoter hereby agrees that they shall, before the completion date of the said project ensure that the title of Plot is free from all encumbrances and

	is marketable and in any event before execution of a conveyance to the society/ Apex body/ federation make full and true disclosure of the nature of his title to the said project Land as well as encumbrances, if any, including any right, title, interest or claim of any party in or over the said project Land / Building/s and shall as far as practicable, ensure that the said project Land / Building/s are free from all encumbrances and that the Owners / Promoter have absolute, clear and marketable title to the said project Land so as to enable him to convey the same to the ultimate Purchaser/Allottee/s. 6.8 NO RIGHTS TO DEMAND SUB-DIVISION: The Purchaser/s of the Plot/Plots agreed to be sold hereunder and all the other purchasers of Plots in the said project shall not have any right to make sub-division of the Plot and always subject to the applicable rules, regulations and bye-laws. 6.9 Purchasers shall not have individual right, title, claim or interest in respect of the amenity spaces, open spaces and the said entire Land and the rights of the Purchaser/s are confined only to the Plot/Plot hereby agreed to be sold, it being expressly agreed subject to the applicable rules, regulations and bye-laws.
7.1 and 7.2	7.1 The Owner/Promoter is absolutely entitled to develop the said Project and the said project land is free from encumbrances except the Mortgage deed dated 23.07.2021 bearing no. 10530/2021, in favour of Vistra ITCL (India) Ltd. office at plot no 22 'G'block, Bandra (East) Mumbai, Hence the Owner/Promoter if specifically required by the Purchaser may obtain requisite NOC of Vistra ITCL (India) Ltd. The Owner/Promoter reserves right to change the charge in favour of any other financial institution by vacating charge of Vistra ITCL (India) Ltd. office at plot no 22 'G'block, Bandra (East) Mumbai, and in such situation provision of this clause shall mutatis mutandis apply to such other financial institution. 7.2 The Owner/Promoter has made full and true disclosure of the Title of the said project land as well as encumbrances, if any, known to the Owner/Promoter in the Title report of the Advocate. The Owner/Promoter has also disclosed to the Purchaser/Allottee/s nature of its right, title interest or right to develop the project land, and also given inspection of all documents to the Purchaser/Allottee/s as required by the law. The Purchaser/Allotte/s having acquainted himself /herself/themselves with all facts and right of the Owner/ Promoter and after satisfaction of the same has entered into this agreement
8.1 and 8.3 to 8.11	8.1 The Owner/Promoter as per Special Township Policy, 2005 (STP) and the subsequent amended Integrated Township Policy, 2019 (ITP) or by further notifications published time to time till the completion of Township, under Maharashtra Regional and Town Planning Act, 1966 or any other legal provision applicable to the said Kaleidoscope Township Land as well as future additional lands acquired by the Owner/Promoter will be entitled to use, modify, consume and transfer, global Floor Space Index / Floor Area Ratio ("F.S.I.") Additional Premium Paid and Fungible FSI, Transferable Development Rights (T.D.R.) either in the same Sector or any other location in the said Kaleidoscope Township 8.3 Irrespective of the fact that the conveyance as envisaged under this Agreement has been executed by the Owner/Promoter or not, Without requiring any consent or power from the said society/apex society/federation, the Owner/Promoter shall be entitled to modify, submit get sanctioned from concerned planning authority entire layout plan of the township without changing F.S.I. and the area of the said project land and the buildings thereon, 8.4 The Owner/Promoter, for all moneys due and payable by the Purchaser to the Owner/Promoter under this Agreement, shall have first and paramount lien and charge upon the said Plot and the right, title and interest of the Purchaser therein.

	8.5 The Overall Township Amenities, green spaces, public utility spaces, open spaces, gardens, shall vest in the Owner/Promoter or its assigns, and it shall have right to allot, sell, transfer, convey or otherwise deal with the same and for the reason of purchase of the said Plot, the Purchaser herein or the said society shall not be entitled to claim any right, title or interest therein except that they shall be entitled to the use thereof as per the Rules that will be made applicable thereof by the Owner/Promoter and on payment of the charges, fees as will be stipulated by the Owner/ Promoter. 8.6 The Owner/Promoter shall be entitled to add or amalgamate adjoining lands to the said project land/ Township Land' and shall be entitled to provide all the Township/ "Kaleidoscope R5 -Misty Greens - phase 3-B" Project amenities to such lands. 8.7 Notwithstanding whatever stated elsewhere in this Agreement, the Parties expressly agree and the Purchaser understands that the schematic layout of amenities given in the brochure of the TP depict the indicative amenities, however the Owner/Promoter will always at its discretion have the right to alter / amend / relocate /add / delete/change any of the items or specifications or amenities outside of the said Project Land. 8.8 The Owner/Promoter has specifically disclosed to the Purchaser and the Purchaser has well-understood that the Owner/Promoter is carrying out the TP as aforesaid and till the completion of the TP, the Owner/Promoter may revise the layout and / or building plans from time to time in respect of the said Township Land, without affecting the layout plan of said Sector No.R-5 phase 3A and the said plot. However, due to such revisions, the location and the area of the sectors and / or artery roads and / or internal roads and / or the open spaces / green spaces / public utility spaces and / or the amenity spaces may change as compared to the sanctioned layout of the said Township Land. The Purchaser/Allottee has therefore hereby given his specific permission /No Objection for the same. The Purchaser/Allottee also agrees and confirms that the Owner/Promoter shall be absolutely entitled to use or permit to be used, the artery roads and/ or the internal roads as per the sanctioned or revised layout in respect of the said Township Land, as an access to the other projects or lands included by the Owner/Promoter in the TP as also as an access to the other lands or projects to be developed by the Owner/Promoter or any other promoter, land owner in the vicinity of the said Township land and the Purchaser shall not be entitled to raise any objection whatsoever for the same. 8.9 The Owner/Promoter, subject to the rules and regulations for the time being in force in this behalf, shall be entitled to change the user of any portion / Sector of the said Township Land and/or any structure/s thereon for any other purposes other than said project land and subject to the rights of the Purchaser in respect of the said Plot hereby agreed to be sold at the absolute discretion of the Owner/Promoter. 8.10 In case the Owner/Promoter forms the said Society as agreed hereinabove, before sale or disposal of some of the Plots in the said Project, in that case the Owner/Promoter shall have the privilege and right to sell, dispose of such unsold Plots, to any person/s as per his discretion at any time in future, without any objection of whatsoever nature on the part of the Purchaser or the said Society. The Owner/Promoter shall liable to pay fixed maintenance charges of Rs.100/- in respect of the said unsold Plots. The Plots in respect of which concerned agreements to sell are cancelled or terminated as envisaged under this Agreement, shall also be treated as unsold Plot for the purpose of this clause. Such new purchasers shall be given membership of the said Society and the same shall be given by accepting only Membership Fee without asking for any other consideration/fee. The Purchaser as well as the said Society shall extend all co- operations to the Owner/Promoter and the new purchaser in this regard.

	8.11 In the event any portion of the said Project Land being required by any utility / service provider for installing any electric sub-station / transformer / Tower, gas bank machinery, plants, buildings, et cetera, the Owner/Promoter shall be entitled to transfer such portion to the said utility / service provider or any other Society for such purpose on such terms and conditions as the Owner/Promoter deems fit and / or as per requirement of such utility / service provider or as per applicable law/ rules / regulations. The Purchaser/Allottee herein or the said Society shall not be entitled to raise any objection in this regard
9.1 to 9.1.3	9.1. Specific covenants by the Purchaser(s)/Allottee(s): The Owner/Promoter has disclosed and explained the unique features of the TP to the Purchaser/Allottee and the Purchaser/Allottee has well understood the same. Hence it is specifically agreed and undertaken by the Purchaser/Allottee with the Owner/Promoter as follows: 9.1.1. Without the consent of the Owner/Promoter till the date of conveyance and of the Society thereafter:The Purchaser shall not do, execute and perform any act, deed or thing whereby the ambience, features, design and objects of the said Plot, said Kaleidoscope Project and/ or the TP will be affected in any manner whatsoever. 9.1.2. The Purchaser shall not do, execute or perform any act, deed or thing whereby the enjoyment of the common areas and facilities of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project as well as the TP, such as common open spaces, internal roads, entrance areas and gates will be affected in any manner whatsoever. 9.1.3. The Purchaser has specifically agreed to maintain the unique features, ambience and esthetics of the said Plot /said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and/ or the TP.
9.3 to 9.6	9.2 Covenants of the Purchaser about payment of maintenance charges: 9.2.1 The Owner/Promoter has declared to the Purchaser/Allottee about applicable current maintenance charges as follows a) Rs. 22/- per Sq. Mtrs. per Month towards Township maintenance charges and b) Rs.11/- per sq. Mtrs. per Month towards society maintenance charges. Within 15 days after notice in writing is given by the Owner/Promoter to the Purchaser/Allottee that the said Plot is ready for use and occupancy, the Purchaser/Allottee shall be liable to bear and pay the proportionate share of outgoings in respect of the said project, Project maintenance charges, and Said Township maintenance charges (TMC), maintenance of said TP The Purchaser shall hand over to the Owner/ Promoter a duly drawn cheque in favour of the Owner/ Promoter and/or the said Society, for an ad-hoc aggregate amount calculated at the rate of Rs. 22/- per Sq. Mtrs., per month for a period of the first 24 months towards Said Township maintenance charges (TMC), maintenance of said TP. And charges of Rs.11/- per sq. mtrs., per month for first 12 months towards society maintenance charges The society will immediately transfer the said collected TMC to TMA. In case the actual expenditure exceeds the estimate, the Owner/ Promoter / the said Society shall be entitled to ask for additional amount towards the maintenance contribution from the Purchaser. The period for payment of township and society maintenance shall commence from the date of the first letter issued by the Owner/Promoter to the Purchaser/Allottee offering possession of the said Plot. The amounts so paid by the Purchaser/Allottee to the Owner/Promoter shall not carry any interest. 9.2.2 The said maintenance charges are to be utilized by the Owner/Promoter or the said Society as the case may be towards: (i) expenses of maintenance of Project Amenities, common Amenities, and Township maintenance Charges towards contribution for maintenance of overall Township amenities. The tenants or licensees of the Purchaser shall not be automatically entitled to benefit of Optional Facilities and the Purchaser shall incorporate clause to that effect in concerned deeds / documents etcetera. It is further agreed that the Purchaser/Allottee will pay the grampanchayat

	tax and fire cess as may be levied in addition to society maintenance charges and township maintenance charges. 9.2.3 The Purchaser shall not withhold any payments of the amounts due and payable to the Owner/Promoter or the said Society as the case may be under this clause on any ground whatsoever. In case the Purchaser commits any default in payment of the maintenance charges payable to the Owner/Promoter or to the said Society, the Owner/Promoter or the said Society as the case may be shall have first charge over the said Plot, and such charge shall move with the said Plot and shall be binding on all subsequent transferees of the Purchaser. The Owner/Promoter or the said Society shall be entitled to recover the said arrears with interest thereon by due course of law. Further the Owner/Promoter and/or the said Society shall be entitled to get the said Plot attached to recover the said arrears as per Sec. 154B-29 of the Maharashtra Co- operative Societies Act, 1960. Moreover, in case of such default on part of the Purchaser, the Owner/Promoter and/or the TMA and/or the said Society shall be entitled to withhold supply of any/all of the utilities such as internet connections, cable connections, cooking gas connections, water supply et cetera of the Purchaser until entire amount due are duly paid by the him to the Owner/Promoter and/or the TMA and/or the said Society as the case may be, with interest thereon. 9.2.4 Covenants relating to the transfer of the said Plot by the Purchaser: The Purchaser shall not, without written permission of the Owner/Promoter before the execution and registration of conveyance to the said Society or without written permission of the said Society after execution and registration of the said conveyance let, sublet, transfer, assign, convey, mortgage, charge or in any way encumber or deal with or dispose of the said Plot or part with the possession of the said Plot or any part thereof or create third party interest of any kind in respect of the said Plot or any part thereof and/or in respect of any of the rights hereunder conferred upon the Purchaser in any manner whatsoever. The Owner/Promoter or the said Society shall be entitled not to give such permission to the Purchaser until and unless i) all the dues payable by the Purchaser to the Owner/Promoter or the said Society or to the Apex Society/Federation under this agreement are paid in full; ii) the Purchaser has rectified default or breach of any of the terms and conditions of this Agreement committed by the Purchaser, and; iii) the Purchaser has adequately indemnified the Owner/Promoter or the said Society as the case may be for such default or breach, iv) The Purchaser shall covers all terms and condition stipulated in this Agreement at the time of execution and registration of transfer deed in favour of third party. 9.4. Covenants relating to the said Society: 9.4.1. The Purchaser shall strictly observe all the rules, regulations, bye-laws, resolutions and any amendments thereto of the said Society. 9.4.2. The Purchaser shall pay to the said Society regularly and punctually, the maintenance charges and also any other charges / contributions etcetera as stated in Clause No. 9.3 hereinabove relating to covenants of the Purchaser about the maintenance charges or determined by the said Society from time to time. In case of default in such payment on part of the Purchaser, the said Society shall be entitled to take necessary action on the Purchaser as per law and as per the bye-laws of the said Society. 9.4.3. The Purchaser along with other purchasers shall not be entitled to form a co-operative society on their own. The Owner/Promoter alone shall be entitled to form society of Plot purchasers as envisaged under this Agreement. 9.4.4. The Purchaser shall not throw dirt, rubbish, rags, garbage or other refuse or permit the same to be thrown from the said Plot in the compound or any portion of the said Township Land and the said Project Land.

	9.4.5. The Purchaser and said society shall comply with garbage and solid waste disposal system for collection and disposal implemented by the TMA as per the applicable provisions of law. 9.4.6. The Purchaser shall always be liable to separate the dry garbage from the wet garbage generated by him. The said Society shall collect such separated garbage from the Purchaser and the Owner/Promoter / TMA shall collect the same from the said Society and dispose it off. 9.4.7. Disposal of sewage and garbage in the TP shall be the responsibility of the Owner/Promoter / TMA for which the Purchaser shall always follow the rules and regulations framed by the TMA in respect of segregation, storage, collection and disposal of sewage and garbage in the TP. 9.4.8. It is the responsibility of every Purchaser / Allottee and its nominees to ensure that the resolutions are made and permanently remain towards the system of society collecting both society maintenance charges and TMC and paying to the TMA the TMC within time. 9.5. Covenants relating to Purchaser's rights to the said Plot: The only rights under this Agreement conferred upon the Purchaser are the rights in respect of the said Plot alone and the same are restricted by terms and conditions of this Agreement. The Purchaser agrees that the Owner/Promoter has exclusive right in respect of rest of the Plots in the said Project and also in respect of all the open spaces, remaining on the said Township Land along with the right to utilize inherent and unutilized F.S.I. or T.D.R. and benefits arising out of setback as detailed in this Agreement.
10.1 to 10.1.3	About Conveyance of the lands out of the said Township Land in favour of the Owner/Promoter: 10.1.1.The Owner/Promoter has specifically disclosed to the Purchaser that for acquiring the title / ownership, the Owner/Promoter will be purchasing the remaining lands out of the said Township land by getting the sale deeds executed and registered from the owners thereof in pursuance of the Development Agreements and Power of Attorneys executed by them in favour of the Owner/Promoter. The Purchaser has well understood the same and the Purchaser has clearly given his Permission/ no-objection for execution and registration of such Sale Deeds of the lands out of the said Township land in favour of the Owner/Promoter. No separate permission/no objection is required to be taken by Owner/Promoter from Purchaser/Allottee in respect of the same. 10.1.2.In case if the Owner/Promoter gets conveyed, the remaining lands out of the said Kaleidoscope Township Land in its name, then the Owner/Promoter being the owner of the said Township Land after completion of development on the said portion lands shall also be responsible to execute the deed of conveyance of the concerned portion of lands out of the said Kaleidoscope Township Land in favour of the said entities as may be formed of such development. 10.1.3.The Owner/Promoter has specifically disclosed to the Purchaser that Owner/Promoter has given the easement rights through the said land/property which is touching the said TP owned by the Sarang Kale. In future also Owner/ Promoter shall have rights to give such easement rights with or without consideration to adjoining land owner and townships.
11 to 19	11.1. The Purchaser shall have no claim to any other part of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" project / the TP nor can he/she/they make any claim or raise any objection to the development of the other portions of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" project / the TP or to any decision that the Owner/Promoter may take in that regard.

	11.2. The Owner/Promoter shall have total discretion in the matter of development and maximum exploitation of the remaining portions of the said Township Land / the said "Kaleidoscope R5 -Misty Greens - phase 3-B" project land and for that further acquire lands in future and expand the Kaleidoscope Township. The Owner/Promoter shall also have total discretion in the matter of the said "Kaleidoscope R5 -Misty Greens - phase 3-B"Project land and shall be entitled to develop, construct sell and dispose of Plots in the said Project. 11.3. The said Project on the said Township Land will be completed step by step or in phases/ stages along with all the necessary amenities and facilities thereof. 12. About maintenance of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and the TP: 12.1. All the Plot purchasers in the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project together with other residents, including the Purchaser herein shall pay maintenance charges to their respective entities regularly. The maintenance charges payable by the Plot purchasers to the society shall be on 'Per Square Meter Basis' per month on sharing area of the said Plot. The rate of maintenance charges will be decided by the respective Society. The maintenance charges payable by the Purchaser to the respective Society shall be comprehensive in nature and shall include maintenance charges towards maintenance of "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Amenities and Overall Project Amenities and Township Amenities. The said Society alone shall be responsible to collect and recover the maintenance charges from the Purchaser and other Plot purchasers. 12.2. All the entities in the TP including the said Society as envisaged under this Agreement shall maintain their respective Project and their respective common area and facilities, in every aspect, out of the maintenance charges collected from the purchasers of the Plots. They should keep the property always insured. Also maintain firefighting and other services by doing annual maintenance contract with professional service providers. 12.3. All the entities in the TP including the said Society shall pay their respective contribution out of the maintenance charges received from the Plot purchasers, to the TMA, for maintenance of said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project amenities and Overall Township Amenities. The Purchaser agree that the said contribution of maintenance charges towards maintenance of the said Overall Township Amenities payable by the said Society to the TMA shall be equivalent to sum total of, i) entire cost of maintenance of the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Amenities and Overall Township Amenities ii) the overhead costs of such organization iii) pro-rata provision of replacement cost and iv) profit margin of about 10% for the TMA over the aforesaid three cost components. v) Over and above said charges, any service tax, GST any other taxes may be applicable time to time. The Purchaser/Allottee hereby agreed, undertakes and covenanted with the Owner/Promoter that he/she/they shall responsible to pay the TMC amount to the said Society within due date. And for that all Plot purchasers/allottees including this Purchaser/Allottee shall pass a resolution in the first general body meeting of the society and give appropriate rights to the Society Managing Committee to collect the TMA amount from all its members and hand over the collected TMC amount to the TMA within time. 12.4. The said Society and/or Apex Society/Federation shall not be entitled to withhold payment of its said contribution to the said TMA on the ground of non-payment of maintenance charges on part of its members. In case of default on part of the said Society, the said TMA shall be entitled to take actions against the said Society as detailed under this Agreement.

	12.5. The said Society and/or Apex Society/Federation shall maintain the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project Amenities (said Amenities) diligently the said TMA shall be entitled to intervene and take over maintenance of the said project at the sole cost of the society. In such an eventuality the said Society shall be liable to pay charges as decided by the said TMA towards cost of management of the said Amenities. 12.6. There shall be one and the same security agency as suggested by TMA, employed for all the entities in the TP. 12.7. The TMA shall maintain the said Overall Township Amenities out of the contribution paid by all the entities in the Township and the Purchaser along with all other unit purchasers shall be entitled to use the same as envisaged under this Agreement. 12.8. The said Society as well as the said TMA shall be entitled to increase the maintenance charges as and when required. 12.9. In case of default of payment of maintenance on part of the said Society to the TMA, the TMA shall be entitled to i) discontinue the supply of utilities to the said Society agreed hereunder and/or ii) discontinue supply of other services envisaged hereunder and/or iii) prevent the members of the said Society from using the said Township Amenities or part thereof, iv) to levy appropriate fines / interest / penalties et cetera on the said Society; until actual realization of the amount due from the said Society. 12.10. The said Optional Facilities can be utilized by the Purchaser on payment of separate fees to the TMA as applicable from time to time and the TMA shall be entitled to make the same available to any third parties as detailed under this agreement. Entitlement of the Purchaser to the use of the said Optional Facilities is entirely voluntary on submitting application and agreeing to abide by Rules and Regulations of the TMA and he is not entitled to oblige the Owner/Promoter or TMA to render the services in the said Optional Facilities and allow the use thereof merely for the reason of purchaser purchasing the said Plot in the TP. In case of non-payment or non-observance of the Rules the Promoter or TMA shall be entitled to discontinue the service to the Purchaser and prevent use of the Optional Facilities. 12.11. The amenities of school, hospital and open market in the TP shall be run by independent bodies as per their own rules and regulations. 12.12. The Owner/Promoter and/ or TMA shall be entitled to impose and collect toll/entry fee on the outsiders for ingress to the TP and/or to the said Township Amenities, so as to restrict free access to the same. 12.13. So as to promote and maintain adequate discipline, hygiene, ambience, aesthetics and proper usage of the said Overall Township Amenities, the TMA shall frame bye – laws / rules / regulations / policies et cetera, inter alia regarding admission to and usage/ maintenance/ repairs et cetera of the said Overall Township Amenities and the Purchaser and the said Society shall observe the same strictly. The TMA will form an advisory committee to improve the policies for maintaining the said Overall Township Amenities, which may advise the TMA in that regard. Every entity/society in the TP shall be given representation on this committee. 13. About the supply of utilities: 13.1. The Owner/Promoter or its appointed agency shall arrange to supply overall township utilities to all the residents therein, at cost / usage fees / consumption charges as decided by the TMA / relevant authority from time to time, payable by the purchasers and / or the entities as the case may be to the TMA. 13.2. The Owner/Promoter may enter into an agreement with the relevant authority of Government of Maharashtra for provision of fire brigade services. The Owner/Promoter will bear one time investment for infrastructure for the said fire

	brigade services. In such case the Purchaser or the said Society as the case may be, shall pay proportionate recurring expenses in respect of the said fire brigade services and related facilities, directly to appropriate authority or to the Government of Maharashtra; otherwise to the TMA. 13.3. The TMA shall arrange for the supply of treated water to each Plot/Tower/Building in the said "Kaleidoscope R5 -Misty Greens - phase 3-B" Project/ TP. The TMA shall provide independent water meter to each society/entity and the society/entity shall pay to the TMA for the same as per unit rates decided solely by the TMA. The source of water will be nearby river 'Mula 'and / or 'Manas Lake' and / or other reasonable source which may be available. In case, for the reasons beyond its control, the TMA is unable to use the river or the lake as source of water and the TMA has to arrange other sources of water, then all the entities shall bear extra cost for such arrangement. However the TMA shall not be responsible for short supply of water, for reasons beyond its control as source of water is beyond control of the TMA. The Owner /Promoter or the TMA has the right to provide only designated quota of water as is envisaged as per EC norms. 13.4. The Owner/Promoter shall install the water sewage treatment plant and arrange for solid waste management and the TMA shall be responsible for maintenance of the same. The Purchasers/Allotees in the said Project and the said Society shall be responsible for co-operation and adharance to the rules as may be formed from time to time by TMA for such arrangement of solid waste management /Sewage Treated Water utilization. 13.5. The Owner/Promoter shall arrange that Maharashtra State Electricity Distribution Company Ltd. ('M.S.E.D.C.L.') or any other Power Utility shall directly provide electricity to purchaser of each Plot, to all the entities in the TP, and to TP; and electricity consumption charges shall be recovered by M.S.E.D.C.L. from the respective consumers directly. However, the TMA shall not be responsible for short supply of electricity. The said society in the said Project shall be supplied with a generator set back up for common areas, which shall be exclusively maintained by that society. 13.6. The TMA shall arrange for internet and Cable TV from either service provider or itself. The Purchaser shall pay the bill / charges for the same directly to the respective provider or to the TMA as the case may be. The Purchaser shall not be entitled to avail services from providers other than those made available by the TMA. The Society or Purchaser / Allottee shall not object for any communication towers. 14. Miscellaneous: 14.1. Provisions of all roads, access, utilities, et cetera on part of the TMA shall always be subject inter alia to the TP Regulations, other laws, rules, statutes, et cetera in that regard. 14.2. The TMA shall be entitled to change inter alia the systems, procedures, rules, regulations, bye-laws et cetera in respect of maintenance of the Overall Township Amenities as well as Society Amenities, solely at its own discretion and the same shall be binding on the Purchaser and the said Society. 14.3. The Owner/Promoter, before execution of this Agreement has explained to the Purchaser inter alia, the entire scheme of TP, mode and form of conveyance, formation of society, maintenance of Overall Township Amenities as well as Society (project) Amenities, the difference between the said Optional Facilities and the said Township Amenities et cetera and the Purchaser having understood and accepted the same, has executed this Agreement. 14.4. This Agreement shall also be contemplated as MOU between the Project Authority i.e. the Owner/Promoter herein and the Purchaser herein as envisaged in the

	environmental clearance granted to the Owner/Promoter by the Ministry of Environment and Kaleidoscopes (I.A. Division). 14.5. The Purchaser and/or the said Society shall follow all rules, regulations, conditions, et cetera imposed by all the laws, statutes, boards and policies, inter alia such as I) Water (Prevention and Control of Pollution) Act 1974, ii) Air (Prevention and Control of Pollution) Act 1981, iii) Environment (Prevention and Control of Pollution) Act 1986, iv) H.W. (M & H) Rules, vii) Maharashtra Pollution Control Board, viii) Letter of Intent, ix) Public Liability (Insurance) Act, 1991, x) Regulation for Development of Special Township In Area under Pune Regional Plan, x) Maharashtra Regional and Town Planning Act,1966 , xi) , and all concerned & then prevailing laws applicable for time being in force, et cetera and notifications, circulars thereunder, published by concerned government authorities / departments. 15. GENERAL COVENANTS AND COMPLIANACE OF LAWS RELATING TO REMITTANCES: 15.1 The Purchaser/Allottee, if resident outside India, shall be solely responsible for complying with the necessary formalities as laid down in Foreign Exchange Management Act, 1999, Reserve Bank of India Act and rules and Regulations made thereunder or any statutory amendment(s), modification(s) made thereof and all other applicable laws including that of remittance of payment acquisition/sale/transfer of immovable properties in India etc., and provide the owner/promoter with such permission, approvals which would enable the Owner/Promoter to full fill its obligations under this agreement. Any refund, transfer of security, if provided in terms of the Agreement shall be made in accordance with the provisions of Foreign Exchange Management Act, 1999 or statutory enactments or amendments thereof and the Rules and Regulations of the Reserve Bank of India or any other applicable law. The Allottee/s understands and agrees that in the event of any failure on his/her part to comply with the applicable guidelines issued by the Reserve Bank of India, he / she shall be liable for any action under the Foreign Exchange Management Act, 1999 or other laws as applicable, as amended from time to time. 15.2 The Owner/Promoter accept no responsibility in this regard. The Purchaser/Allottee/s shall keep the Owner/Promoter fully indemnified and harmless in this regard. Whenever there is any change in the residential status of the Purchaser/Allottee/s subsequent to the signing of this Agreement, it shall be the sole responsibility of the Purchaser/Allottee/s to intimate the same in writing to the Owner/Promoter immediately and comply with necessary formalities if any under the applicable laws. The Owner/Promoter shall not be responsible towards any third party making payment / remittances on behalf of any Purchaser/Allottee/s and such third party shall not have any right in the application / allotment of the said Plot applied for herein in any way and the Owner/Promoter shall be issuing the payment receipts in favour of the Purchaser/Allottee/s only. 16. ABOUT ISSUE OF NO OBJECTION FOR TRANSFER OF THE SAID PLOT: 16.1. The Purchaser shall be entitled to assign, transfer otherwise deal with their rights arising by these in respect of the said Plot to any person of his choice, during construction stage of the said Plot and the Owner/Promoter on prior written request in prescribed form, shall issue in his favor necessary No Objection Certificate to that effect and shall also co-operate with the Purchaser in that regard, provided, i) the Purchaser pays entire consideration amount to the Owner/Promoter before selling the said Plot, ii) the Purchaser pays to the Owner/Promoter transfer charges of Rs. 1,00,000/- and iii) the subsequent purchaser of the said Plot absolutely consents to abide by all the terms and condition of this Agreement for which the Parties agree to execute a tripartite agreement with a new purchaser joining in as a third party.

	16.2. If the Purchaser after possession, after formation of the said Society but before execution and registration of the conveyance intends to assign his rights in respect of the said Plot, he/she/they shall take No Objection from the Owner/Promoter as well as from the said Society (if formed at that time), by paying the said transfer charges as determined by the said Society. 16.3. If the Purchaser after execution and registration of the conveyance, intends to assign his/her/their rights in respect of the said Plot by way of sell/lease/ assignment the Purchaser shall be liable to pay the requisite amount fixed by the government from time to time as transfer fee to the said society along with the then prevailing deposit amount as shall be fixed by said society and any increment thereto and demanded by the said transfer charges to the said Society. 17. PERMISSION BY THE PURCHASER FOR ADDITIONAL LAND IN TOWNSHIP: 17.1. The Owner/ Promoter has specifically informed and disclosed the Purchaser/Allottee and the Purchaser/Allottee has well understood that in addition to said Kaleidoscope Township Lands the Owner/Promoter may purchase some more adjacent lands and further amalgamate it into said TP with intention to expand the Township, to construct and develop more residential and/or commercial projects in TP by utilizing existing / balance potential of FSI in the Kaleidoscope Township Land as well as the additional lands acquired by the Owner/Promoter time to time in future for the expansion of TP without changing the area of the said project land along with said F.S.I. , 18. PAYMENT OF TAXES, OUTGONGS ETCETERA BY THE PURCHASER: 18.1. All Taxes under GST, direct and indirect taxes, charges, cess or other outgoings, present and future, one time and/or recurring as imposed by the government, semi-government, local authorities, any statutory Society, et cetera in respect of this Agreement and this transaction shall be borne and paid exclusively by the Purchaser. 18.2. The Purchaser hereby agrees that in the event of any amount by way of premium to the State and/or Central Govt. or betterment charges or service tax or development tax or educational cess or value added Tax (VAT) or any other tax or payment of a similar nature becoming payable by the Owner/Promoter either before or after delivery of possession of the Plot the same shall be paid in advance to the Owner/Promoter, as and when charged and demanded by the Owner/Promoter. If Purchaser fails to pay the amount within fifteen days from demand then the purchaser shall be liable to pay interest as specified in Act until payment. Also in the said event there shall be charge of the amount due on the said Plot and income there from and until payment of said dues Purchaser shall not be entitled to mortgage, assign, sell or transfer the said Plot in any manner. It is understood that interest shall not cover the damages/losses that will be suffered by the Owner/Promoter due to non- payment. Therefore, Purchaser shall be further liable to pay damages and losses that will be suffered by the Owner/Promoter due to non-payment and the Purchaser shall keep the Owner/Promoter harmless and indemnified therefrom. In case of dispute regarding above the same shall be referred to a single arbitrator to be appointed by the Owner/Promoter. 18.3. Purchaser hereby agrees to indemnify and keep the Owner/Promoter indemnified all the time and keep the Owner/Promoter harmless from all losses that may be incurred by the Owner/Promoter on account of non-payment and / or delayed payment inter alia of maintenance charges, contributions, taxes, levies, outgoings et cetera and other defaults, or any breach of terms and conditions of this Agreement on part of the Purchaser.

	18.4. Provided that any deduction of an amount made by the Purchaser/s on account of Tax Deducted at Source (TDS), as may be required under the Income Tax Act, 1961, under section 194IA, read together with the Income Tax Rules,1962, as per prevailing law or such other Acts that may be introduced or substituted for the Income Tax Act, 1961 whether called the Direct Tax code or by such other name, to govern the deduction and payment of the TDS in respect of purchase of Immoveable property, while making any payment to the Developers under this Agreement shall be acknowledged / credited by the Developer to the account of the Purchaser/s, only upon purchaser/s submitting the Original certificate, evidencing deduction and payment of such tax deducted at source as may be prescribed by the Law and rules governing the deduction of TDS, Income Tax Act, 1961 and the Income Tax Rules,1962. Further such credit shall be subject to, confirmation of the amount so deducted reflecting in the TDS/Tax credit account of the developer, reflected in form 26AS as prescribed under the prevailing laws or such other forms/certificates that may be prescribed in future to acknowledge credit of taxes paid or deducted on behalf of the developer on the website of the Income tax Department or of any agency so appointed by the Income tax department or relevant authorities as the case may be to manage, govern or regulate the collection and deduction of Income tax. 18.5. The Purchaser/s hereby agrees, confirms and declares that: The Purchaser/s shall be liable to deduct and pay the Tax Deducted at Source ("TDS") on the full value of the price/consideration of the said Plot as mentioned in the agreement, as per Section 194 IA of the Income Tax Act, 1961, to the concerned government authority, compulsorily on or before 7th (seventh) day of the month subsequent to the month in which the said deduction made and shall handover a copy of challan & certificate from the appropriate / concerned authority in that regard to the Owner/Promoter within 7 (seven) days from the date of payment of the TDS. 18.6. The Owner/Promoter has informed the Purchasers /Allottees that it is mandatory duty of the Purchasers/Allottees to deduct TDS from payment of consideration payable to the Owner/Promoter and deposited such amount deducted at source with concerned Govt. department within prescribed period as per the provisions of Section 194 IA of Income Tax Act, 1961 and rules thereunder. If in case the Purchasers/ Allottees are penalized for failure to so deduct and/or so pay the deducted amount the Purchasers/Allottees shall not be entitle to make any claim of refund against the Owner/Promoter for any additional amount that may be required to be paid by him together with interest, penalty as the case may be by the Income Tax department, on the ground of lack of knowledge of the provision of the law or any other ground whatsoever. 18.7. Provided further that at the time of handing over the possession of the said Plot, if any such certificate(s) has not been produced or submitted by the purchaser to the owner/promoter, the purchaser shall pay/deposit an equivalent amount as interest free deposit with the Owner/Promoter, which deposit shall be refunded by the Owner/Promoter on the purchaser producing such certificate(s) within 4 months of taking possession of the said Plot. Provided further that in case the purchaser/s fails to produce such certificate(s) within the stipulated period of the 4 months, the Owner/Promoter shall be entitled to appropriate the said Deposit against the sum(s)/dues receivable from the Purchaser/s. 19. REGISTRATION AND COST THEREOF: 19.1. The Purchaser shall this Agreement at the proper registration office for the registration within the time prescribed by the Registration Act, 1908 from the date of execution hereof and upon intimation thereof by the Purchaser, the Owner/Promoter shall attend such office and admit execution thereof.

	19.2. All the expenses by whatever name called and stamp duty, registration fees, subsequent and ancillary expenses in respect of this Agreement, stamp duty, registration fee and other expenses for conveyance of structure in favour of society as aforesaid, conveyance of "Kaleidoscope R5 -Misty Greens - phase 3-B" Project land, common amenities and facilities, open spaces, in favour of Federation/Apex society as aforesaid, any other document required to be executed in respect of and relating to the said Plot and / or the transaction under this Agreement shall entirely be borne and paid by the Purchaser. Any deficit and penalty thereof, if any, shall also be borne and paid by the Purchaser only. 19.3. At the time of registration of conveyance or Lease of the project land to said apex Society or Federation, the Allottee shall born (his) their contribution and pay to the Owner/Promoter, the Allottee's share of stamp duty and registration charges payable, by the said Apex Society or Federation on such conveyance or lease or any document or instrument of transfer in respect of the structure of the said land to be executed in favour of the Apex Society or Federation
21.1.2 (part) to 22.2	by deducting; (i) an amount of Rs. 1,00,000/- (Rupees One Lacs Only) towards liquidated damages and/or cancellation in addition to any interest (as specified in the Rules of the said Act) payable on outstanding amount overdue from the Purchaser/Allottee/s, (ii) the stamp duty, registration charges, cost of extra work etc. and (iii) the amount of Service Tax, VAT, GST, LBT or any other taxes charged by the Owner/Promoter to the Purchaser/Allottee/s 21.1.2 (i) Till the date of such termination and the Owner/Promoter herein shall be entitled to deal with the said Plot with any prospective buyer. Delay in issuance of any reminder/s or notice/s from the Owner/Promoter shall not be considered as waiver of Owner/Promoter's absolute right to terminate this Agreement. 21.1.3 For whatsoever reason if the Allottee/s herein, without any default or breach on his/her/their part, desire to terminate this agreement/ transaction in respect of the said Plot then, the Allottee/s herein shall issue a prior written notice by Registered Post AD only to the Owner/Promoter as to the intention of the Allottee/s and on such receipt of notice the Owner/Promoter herein shall be entitled to deal with the said Plot with prospective buyers. After receipt of such notice of intention to terminate this agreement the Owner /Promoter shall issue a 15 days' notice in writing calling upon him/her/them to clear his/her/their housing loan amount with interest thereto if any and obtain NOC from his/her/their lender and execute and register Deed of Cancellation. Only upon the execution and registration of Deed of Cancellation and such NOC from his/her/their lender if applicable, the Allottee/s shall be entitled to receive the refund amount by deducting; (i) an amount of Rs. 1,00,000/- (Rupees One Lacs Only) towards liquidated damages and/or cancellation in addition to any interest (as specified in the Rules of the said Act) (ii) the stamp duty, registration charges, cost of extra work etc. and (iii) the amount of Service Tax, VAT, GST, LBT or any other taxes charged by the Owner/Promoter to the Purchaser/Allottee/s till the date of such termination of said Plot, within a period of six months, subject to terms of this Agreement. 21.1.4 It is specifically agreed between the parties hereto that, if the transaction in respect of the said Plot between the Owner/Promoter and Allottee/s herein terminated as stated hereinabove then all the instruments under whatsoever head executed between the parties hereto or between the Owner/Promoter and Allottee/s herein, in respect of the said Plot, shall stands automatically cancelled and either party have no right, title, interest or claim against each other. 21.1.5 In case of cancellation the Owner /Promoter will refund the amount till then paid by the Purchaser / Allottee to the Owner /Promoter after deducting standard

	deduction as envisage herein to the First Purchaser, whose name has appeared in first in the Agreement to sell. If any dispute arises between the joint Purchasers/Allottees of the said Plot about such refund to be given to, the Owner /Promoter will be kept refund amount in the escrow account till determination of such dispute finally. In case such dispute is resolved amicably and all the joint Purchasers /Allottees inform accordingly in writing to whom the refund amount will be paid, the Owner /Promoter will refund to such Purchasers /Allottees. If in case such dispute is resolved by decree or award of competent court then the Owner/Promoter will refund such amount as per decree or award. In case of dispute when the refund amount is kept in the escrow account the owner / promoter shall have right to sell / dispose off the said Plot to any prospective customer. The Purchasers / Allottees hereby gives express consent to such arrangement and Owner/Promoter is not required to take any separate consent or no objection from the Purchasers / Allottees. 22. THE PERMISSION AND CONFIRMATION OF THE PURCHSER: 22.1. The said Purchaser/Allottee hereby expressly confirms having understood the concept and terms and conditions of Kaleidoscope Township and the said Purchaser/Allottee confirms and permits at all times for the arrangement made by Owner / Promoter and TMA for rendering the services to the residents of the Kaleidoscope Township. This confirmation is essence of this Agreement and same shall be binding at all times on respected Purchaser /Allottee. 22.2. The Purchaser/Allottee have been made aware by the Owner/Promoter that the Owner/Promoter has availed loan facilities for construction and development of the said and the encumbrances/charges of Lender of the Owner/Promoter is on the said "Kaleidoscope R5 -Misty Greens - phase 3-B"Project Land and units constructed thereon and sale proceeds or receivable thereof. As required by the Lender, the Purchaser/Allottee hereby agree, confirm and express his permission to any assignment by the Owner/Promoter in favour of the Lender or any third party nominated by it or the exercise of any takeover / step in rights of the Lender, pursuant to default by the Owner/Promoter under the loan transaction documents.
23.2	23.2. No other responsibility of the Owner/Promoter: 23.1. The Owner/Promoter herein has neither undertaken any responsibility nor has the Owner/Promoter agreed anything with the Purchaser orally or otherwise and there is no implied agreement or covenant on the part of the Owner/Promoter, other than the terms and conditions expressly provided under this agreement. This Agreement supersedes all earlier understandings, writings, oral commitments between the Owner/Promoter and Purchaser/ Allottee if any.
25 to 27	25. JURISDICTION OF COURT IN CASE OF DISPUTE: That the rights and obligations of the parties under or arising out of this Agreement shall be construed and enforced in accordance with the laws of India for the time being in force and the 'Pune Courts' will have the jurisdiction for this Agreement. Any dispute between parties shall be settled amicably. In case of failure to settle the dispute amicably, such unsettled dispute shall be referred to the Maharashtra Real Estate Regulatory Authority as per the provisions of Real Estate Regulation and Development Act 2016 and the Rules and Regulation framed thereunder. 26. NAME OF THE PROJECT:- Notwithstanding anything contained anywhere in this agreement, it is specifically agreed between the parties hereto that, the Owner/Promoter herein has decided to have the name of the entire TP is "KALEIDOSCOPE TOWNSHIP" and said project will be denoted by letters or name "Kaleidoscope R5 -Misty Greens - phase 3-B" Project and or as decided by the Owner/Promoter and further erect or affix Owner/Promoters

	name board at situated places as decided by the Owner/Promoter herein on a Project and at the entrance of the scheme. The Purchaser/Allottee/s in the said project or proposed organization are not entitles to change the aforesaid project and remove or alter Owner/Promoter's name board in any circumstances. This condition is essential condition of this agreement. 27. RESOLUTION OF BOD OF THE OWNER/PROMOTER: The Owner/Promoter being the Private Limited Company registered under the Companies Act, 1956, their Board of Directors have passed resolution in the meeting dated _____ authorizing the signatories on behalf of the Owner/Promoter to execute and register this Agreement. The copy of the said resolutions is annexed herewith as Annexure 'L'
38	38. LEGAL EXPENSES The Purchaser/Allottee shall pay to the Owner/Promoter a sum of Rs. 7000/- for meeting all legal costs, registration charges and expenses, including professional costs of the Attorney-at-Law/Advocates of the Owner/Promoter in connection with formation of the said Society, or Limited Company, or Apex Society or Federation and for preparing its rules, regulations and bye-laws and the cost of preparing and engrossing the conveyance.
40	40. DECLARATION BY PARTIES: The Parties hereto have carefully read and understood all the contents of this Agreement along with all the Schedules and Annexure thereof and also got the same understood in their vernacular language and upon full satisfaction of the same the Parties hereto have signed this Agreement in the presence of the witnesses as stated below. STAMP DUTY PARTICULARS Location :- Kaleidoscope Township, Mouje Bhugaon, Taluka Mulshi, District Pune. Project Name "Kaleidoscope R5 -Misty Greens - phase 3-B" Type of property :- Plot Plot No. _____ Prescribed Value of the said Plot Rs. /- Consideration of the said Plot as per Agreement Rs._____/- Stamp Duty paid on Rs. /- Stamp Duty amount paid Rs. /-
Annexure K	

KDPL Payment Schedule	%
Booking	
Advance	10%
At Agreement Execution	20%
Upon completion of fencing of plot	9%
Upon start of internal road work	20%

		Upon start of utility work	20%	
		At the time of offer for Possession	20%	
		Infra Charges		
		TDS	1%	

M/s. Kaleidoscope Developers Pvt Ltd

(Sign and Stamp)

KALEIDOSCOPE DEVELOPERS PVT. LTD.